

21 June 2021

Our reference: 2021/4547

Dr Richard McLean
By Email: richarddrawsstuff@gmail.com
Dear Dr McLean

Freedom of Information Request – Notice of Decision

I refer to your email dated 20 May 2021 requesting access to documents under the *Freedom of Information Act* (1982) (**FOI Act**) as follows:

QUESTION: I would like my FOI of Comsure in all regards to my name my business my calls and my emails. Please provide a timeframe, because something dodgy is going on and we both know it, its bigger than you and me combined.

On 24 May 2021, I wrote to you acknowledging your request and clarifying the scope of your request to be for all documents held on your Comcare claim file.

Summary of decision

I am authorised under section 23 of the FOI Act to make decisions in relation to FOI requests.

Comcare holds 2 documents that relates to your request. These are all the documents from your claim file.

I have decided to grant you **full access** to the documents.

I note that I released these documents to you through our administrative access arrangements on 18 June 2021.

A schedule of documents is at **Attachment A**.

Rights of review

If you are not satisfied with this decision, you are entitled to seek review. Your review rights are set out at **Attachment B** to this notice.

Further assistance

If you have any questions, please email foi@comcare.gov.au.

Yours sincerely,

Jesse
Statutory Oversight Officer
Comcare

SCHEDULE OF DOCUMENTS

Richard McLean - (2021/4547)

Doc No.	Page No.	Date	Description	Decision
1.	1-178	N/A	Claim documents	Full Access
2.	179-187	N/A	Claim comments	Full Access

INFORMATION ON RIGHTS OF REVIEW

FREEDOM OF INFORMATION ACT 1982

Application for review of decision

The *Freedom of Information Act 1982* (FOI Act) gives you the right to apply for a review of this decision. Under sections 54 and 54L of the FOI Act, you can apply for a review of this decision by:

- (i) an internal review officer within Comcare; or
- (ii) the Information Commissioner.

Internal Review

If you apply for internal review, it will be carried out by a different decision-maker who will make a fresh decision on your application. An application for review must be:

- made in writing;
- made within 30 days of receiving this letter; and
- sent to the postal or email address shown in this letter.

No particular form is required, but it is desirable to set out in the application the grounds upon which you consider the decision should be reviewed.

If the internal review officer decides not to grant you access to all of the documents to which you have requested access, you have the right to seek a review of that decision by the Information Commissioner. You will be further notified of your rights of review at the time you are notified of the internal review decision.

Please note that if you apply for an internal review and a decision is not made by an internal review officer within 30 days of receiving the application, you have the right to seek review by the Information Commissioner for a review of the original FOI decision on the basis of a 'deemed refusal' decision. An application for Information Commissioner review in this situation must be made within 60 days of the date when the internal review decision should have been made (provided an extension of time has not been granted or agreed).

Information Commissioner review

You must apply in writing within 60 days of the receipt of the decision letter and you can lodge your application in one of the following ways:

Online: www.oaic.gov.au
Post: GPO Box 5218, Sydney NSW 2001
mail: enquiries@oaic.gov.au

If a person has sought an internal review and no result of that review is provided within 30 days, then the applicant may apply to the Information Commissioner to review the matter.

An application form is available on the website at www.oaic.gov.au. Your application should include a copy of the notice of the decision that you are objecting to (if one was provided), and your contact details. You should also set out why you are objecting to the decision.

Complaints to the Information Commissioner or the Commonwealth Ombudsman

You may complain to either the Commonwealth Ombudsman or the Australian Information Commissioner about action taken by Comcare in relation to your request. The Ombudsman will consult with the Australian Information Commissioner before investigating a complaint about the handling of an FOI request.

Your enquiries to the Ombudsman can be directed to:

Phone: 1300 362 072 (local call charge)
Email: ombudsman@ombudsman.gov.au

Your enquiries to the Australian Information Commissioner can be directed to:

Phone: 1300 363 992 (local call charge)
Email: enquiries@oaic.gov.au

No particular form is required to make a complaint to the Ombudsman or the Australian Information Commissioner. The request should be in writing and should set out the grounds on which it is considered that the action taken in relation to the request should be investigated and identify Comcare as the relevant agency.